

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS-----x
ALEXANDRE TCHISTIAKOV ,
Plaintiff,

Index # 501263/2022

FIRST AMENDED
VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, MICHAEL MASELLA, NYPD
Police Officer (Tax number 958888) in his
individual and official capacity; JAMES L. TOMASULO
NYPD Sergeant (Tax number 945329) in his
individual and official capacity; and, Police Officer
KHURRAM ZUBAIR (Tax number 962891) in his individual
and official capacity; and, POLICE OFFICERS and/or
DETECTIVES JOHN DOES 1 through 15 in their
individual and official capacities,Defendants
-----xPlaintiff, ALEXANDRE TCHISTIAKOV, by his attorneys, The Layton Law Firm, PLLC
alleges the following, upon information and belief, as his Complaint:**NATURE OF THE ACTION**

1. This is an action for federal civil rights violations¹ arising from the defendant Police Officers² unlawful gunpoint entry and search and unlawful arrest of the plaintiff ALEXANDRE TCHISTIAKOV when police officers who did not have a warrant for plaintiff's residence entered the residence of plaintiff and multiple police officers held him at gunpoint threatening to shoot him if he moved; there was no justification or lawful reason to enter his premises.

¹ A motion to consolidate this Complaint with Kings County Index #5165922019 will be filed after service of this Complaint is complete.

² The names/shield numbers and ranks of the New York Police Department personnel who entered the residence of the Plaintiff is currently not known; the Plaintiff intends to further Amend the Complaint once the names, shield numbers and ranks are ascertained.

2. Under the Federal cause of action brought under 42 U.S.C. Section 1983, Plaintiff brings claims against each of the individually named officers for excessive force; failure to intervene; and, due process violations. Plaintiff seeks compensatory and punitive damages for violation of plaintiff's civil rights; costs, disbursements and attorney fees under 42 U.S.C. Sec. 1988.

3. Under the Federal causes of action naming MICHAEL MASELLA, NYPD Police Officer (Tax number 958888); JAMES L. TOMASULO NYPD Sergeant (Tax number 945329); Police Officer KHURRAM ZUBAIR (Tax number 962891) and POLICE OFFICERS and/or DETECTIVES JOHN DOES 1 through 15 in their individual and official capacities pursuant to 42. U.S. C. Sections 1985 and 1986, Mr. Tchistiakov seeks declaratory relief pursuant to 28 U.S.C. Sec. 2201, compensatory and punitive damages for violation of plaintiff's civil rights and an award of costs, disbursements and attorney fees under 42 U.S.C. Sec. 1988.

PARTIES

4. Plaintiff ALEXANDRE TCHISTIAKOV was a resident of the State of New York, County of Kings on the date of the occurrence; he is currently a resident of the State of New York, County of Kings.

5. Defendant, THE CITY OF NEW YORK is a municipal corporation duly authorized and existing under and by virtue of the laws of the State of New York.

6. Defendant, THE CITY OF NEW YORK, has established and maintains a police department which is an agency of the defendant, THE CITY OF NEW YORK. The police department acts as the agent for THE CITY OF NEW YORK in the area of law enforcement for which it is ultimately responsible. Defendant THE CITY OF NEW YORK assumes the risks

incidental to the maintenance of a police force and the employment of police officers as said risk attaches to the public consumers of the services provided by the New York City Police Department (hereinafter, "NYPD").

7. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendants POLICE OFFICERS and/or DETECTIVES JOHN DOE 1 through 15.

8. At all times relevant, POLICE OFFICERS and/or DETECTIVES JOHN DOE 1 through 15 were duly appointed and acting police officers of THE CITY OF NEW YORK.

9. At all times relevant, POLICE OFFICERS and/or DETECTIVES JOHN DOE 1 through 15 were acting under the color of State Law.

10. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant MICHAEL MASELLA, NYPD Police Officer (Tax number 958888) .

11. At all times relevant, MICHAEL MASELLA, NYPD Police Officer (Tax number 958888) was a duly appointed and acting police officer of THE CITY OF NEW YORK.

12. At all times relevant, MICHAEL MASELLA, NYPD Police Officer (Tax number 958888) was acting under the color of State Law.

13. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329).

14. At all times relevant, JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) was a duly appointed and acting police officer of THE CITY OF NEW YORK.

15. At all times relevant, JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) was acting under the color of State Law.

16. At all times relevant, defendant THE CITY OF NEW YORK employed the individual defendant Police Officer KHURRAM ZUBAIR (Tax number 962891).

17. At all times relevant, Police Officer KHURRAM ZUBAIR (Tax number 962891) was a duly appointed and acting police officer of THE CITY OF NEW YORK.

18. At all times relevant, Police Officer KHURRAM ZUBAIR (Tax number 962891) was acting under the color of State Law.

19. Notwithstanding the unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful functions as agents, servants and employees of the CITY OF NEW YORK.

FACTUAL AVERMENTS

20. On or about February 5, 2019, a female called 911 at approximately 3:39 A.M.

21. The female caller is believed to have called 911 from Dutchess County to report that a Latino shot his mother with his father's gun.

22. The female caller provided her telephone number as well as the telephone number of the alleged shooter to Tiffany Henry, the 911 operator/dispatcher.

23. The first report of the alleged crime location was made at 3:33 A.M. on February 5, 2019 which reported the location as 350 Marconi Street in the County of the Bronx in the City and State of New York.

24. At 3:40 A.M the location was changed from 350 Marconi Street to 1311 Brightwater Avenue in Brooklyn, New York.

25. The female caller to 911 was unable to provide an address where the shooter resided but told the operator that he "possibly" lives in Brooklyn.

26. The female caller provided the 911 caller with a partial address where the shooter possibly lived; the address she provided was for 1311 Brightwater Avenue.

27. 1311 Brightwater Avenue in the City and State of New York is a multi-storied building which appears to have many dozens if not hundreds of apartment units and many apartment units on each floor of the building.

28. At 3:41 A.M. on February 5, 2019, the location was changed to 1311 Brightwater Avenue, Brooklyn, 4.

29. At 3:44 A.M. on February 5, 2019, a male caller called a second time while the 911 dispatcher was online with the Dutchess County police or police dispatcher.

30. At 3:45 A.M. on February 5, 2019 a 911 dispatcher transmitted the information that the apartment is an invalid location for the location.

31. At 3:49:55 A.M. on February 5, 2019 the 911 call was reviewed and it was confirmed that the caller stated that the location was "Apt 4."

32. At 3: 49:29 on February 5, 2019 a call was made to the number which had been provided or otherwise obtained by the police dispatcher and the female who answered the call stated that she knew nothing about the situation.

33. No description of the alleged perpetrator other than a male Latino had been provided to the police.

34. The female caller was not known to have provided reliable information to the police at any time prior to her making the call as described hereinabove.

35. The male caller provided no other information which was transmitted via police dispatch/the 911 or radio system except what has hereinabove been stated.

36. At 3:57 A.M on February 5, 2019, a 911/radio dispatch transmitted that the event was closed and the disposition that was assigned was "Cancelled."

37. At 4:10 A.M. on February 5, 2019, the "event" was once again noted to be "CLOSED," and units on the scene reported "negative res[ults] on CNVS" which upon information and belief means that a canvass of the location had been made without resulting in locating the alleged shooter.

38. On February 5, 2019 the final remarks of the police dispatcher/radio runs from 4:14 A.M. show that the "event" was "closed" and "cancelled."

39. 1311 Brightwater Avenue is depicted in the following photograph³



40. On or about February 5, 2019, plaintiff ALEXANDRE TCHISTIAKOV was residing at 1311 Brightwater (Apt. 4A) in the City and State of New York, Kings County.

41. ALEXANDRE TCHISTIAKOV resided with his son in his apartment.

³ Source: https://www.google.com/maps/place/1311+Brightwater+Ave,+Brooklyn,+NY+11235/@40.5759868,-73.95605,3a,75y,90t/data=!3m8!1e2!3m6!1sAF1QipOw6hPML_uc8CPWZ89EGjlmzqTZeJkYiUG21pSA!2e10!3e12!6shttps:%2F%2Flh5.googleusercontent.com%2Fp%2FAF1QipOw6hPML_uc8CPWZ89EGjlmzqTZeJkYiUG21pSA%3Dw86-h114-k-no!7i3024!8i4032!4m13!1m7!3m6!1s0x89c2446ba59c5d59:0x5983b672cf8dda34!2s1311+Brightwater+Ave,+Brooklyn,+NY+11235!3b1!8m2!3d40.5759868!4d-73.95605!3m4!1s0x89c2446ba59c5d59:0x5983b672cf8dda34!8m2!3d40.5759868!4d-73.95605?hl=en

42. In the early morning hours while ALEXANDRE TCHISTIAKOV was at home he was startled by a large number of police officers who forced their way into his home; the police were dressed in "SWAT" style para-military combat gear and clothing; the officers rushed the front door which struck the plaintiff; the police entered his apartment and had their assault rifles pointed at his head; the police told ALEXANDRE TCHISTIAKOV not to move or he would be shot.

43. The officers who entered the plaintiffs apartment and subjected plaintiff to the aforesaid arrest had no warrant.

44. Defendant MICHAEL MASELLA, NYPD Police Officer (Tax number 958888) was one of the officers who entered the residence/premises of the plaintiff ALEXANDRE TCHISTIAKOV.

45. Defendant MICHAEL MASELLA, NYPD Police Officer (Tax number 958888) pointed a loaded rifle and or firearm at the plaintiff ALEXANDRE TCHISTIAKOV.

46. Defendant MICHAEL MASELLA, NYPD Police Officer (Tax number 958888) threatened to shoot and kill the plaintiff ALEXANDRE TCHISTIAKOV.

47. Defendant MICHAEL MASELLA, NYPD Police Officer (Tax number 958888) entered the premises of the plaintiff ALEXANDRE TCHISTIAKOV without a warrant and without probable cause.

48. Defendant Police Officer KHURRAM ZUBAIR (Tax number 962891) was one of the officers who entered the residence/premises of the plaintiff ALEXANDRE TCHISTIAKOV.

49. Defendant Police Officer KHURRAM ZUBAIR (Tax number 962891) pointed a loaded rifle and or firearm at the plaintiff ALEXANDRE TCHISTIAKOV.

50. Defendant Police Officer KHURRAM ZUBAIR (Tax number 962891) threatened to shoot and kill the plaintiff ALEXANDRE TCHISTIAKOV.

51. Defendant Police Officer KHURRAM ZUBAIR (Tax number 962891) entered the premises of the plaintiff ALEXANDRE TCHISTIAKOV without a warrant and without probable cause.

52. Defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) was one of the officers who entered the residence/premises of the plaintiff ALEXANDRE TCHISTIAKOV.

53. Defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) pointed a loaded rifle and or firearm at the plaintiff ALEXANDRE TCHISTIAKOV.

54. Defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) threatened to shoot and kill the plaintiff ALEXANDRE TCHISTIAKOV.

55. Defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) entered the premises of the plaintiff ALEXANDRE TCHISTIAKOV without a warrant and without probable cause.

56. Defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) supervised the officers who entered the premises of the plaintiff ALEXANDRE TCHISTIAKOV without a warrant and without probable cause.

57. Defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) approved the entry of the officers who entered the premises of the plaintiff ALEXANDRE TCHISTIAKOV without a warrant and without probable cause.

58. Defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) trained the officers who entered the premises of the plaintiff ALEXANDRE TCHISTIAKOV without a warrant and without probable cause.

59. Defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) ratified the illegal entry by the officers who entered the premises of the plaintiff ALEXANDRE TCHISTIAKOV without a warrant and without probable cause.

60. Defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) failed to discipline and/or refer the officers for discipline or prosecution who entered the premises of the plaintiff ALEXANDRE TCHISTIAKOV without a warrant and without probable cause.

61. Defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) failed to properly investigate prior to the entry of officers into the premises of the plaintiff ALEXANDRE TCHISTIAKOV without a warrant and without probable cause.

62. Defendant MICHAEL MASELLA, NYPD Police Officer (Tax number 958888) failed to apply for a warrant prior to the entry of the premises.

63. Defendant Police Officer KHURRAM ZUBAIR (Tax number 962891) failed to apply for a warrant prior to the entry of the premises.

64. Defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) failed to apply for a warrant prior to the entry of the premises.

65. As a result of the warrantless entry, trespass and false arrest and the use of excessive and unlawful force plaintiff was injured.

66. As a result of the false arrest and the use of excessive force plaintiff was seriously injured.

67. The arrest was initiated and continued without probable cause to believe any crime had been committed by the plaintiff, ALEXANDRE TCHISTIAKOV.

68. Defendants' actions were undertaken pursuant to municipal policies, practices and customs and under color of state law.

69. ALEXANDRE TCHISTIAKOV's right to be free of excessive force without due process of law is clearly established, and reasonable persons employed by defendants are aware, or have reasons to be aware of this.

70. ALEXANDRE TCHISTIAKOV's right to be free of a warrantless entry to his residence without due process of law is clearly established, and reasonable persons employed by defendants are aware, or have reasons to be aware of this.

71. The conduct of individual defendants was outrageous and was done with reckless indifference to protected civil rights.

72. The plaintiff had knowledge of his confinement.

73. The plaintiff did not consent to his confinement.

74. The plaintiff was prevented from leaving the confinement.

75. Plaintiff sustained great fear, emotional harm, disgrace, anxiety, stress, embarrassment and loss of self-esteem as a result of the aforesaid trespass, warrantless entry into his premises, arrest, assault, battery, intimidation and abusive behavior perpetrated upon him by defendants.

76. Plaintiff was, without just cause or provocation intentionally arrested without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious injury and harm to plaintiff ALEXANDRE TCHISTIAKOV.

77. That at the time and place aforesaid, the individually named defendants, without just cause or provocation, without permission and without a warrant entered into the apartment of the plaintiff without probable cause resulting in an unlawful confinement, deprivation of liberty and other serious injury and harm to plaintiff ALEXANDRE TCHISTIAKOV.

78. That at the time and place aforesaid, individually named defendants without just cause or provocation, maliciously, recklessly and/or intentionally caused plaintiff to be arrested and imprisoned without probable cause resulting in unlawful confinement, deprivation of liberty and other serious injury to plaintiff ALEXANDRE TCHISTIAKOV.

79. That the occurrence and damages sustained by plaintiff were caused solely by the malicious, reckless, and/or intentional conduct of the defendants including the CITY OF NEW YORK and the individually named defendants without any provocation on the part of plaintiff contributing thereto.

FIRST CAUSE OF ACTION

42 U.S.C. SECTION 1983

**Unreasonable Search and Seizure/Violation of 4th Amendment of the United States Constitution
Against Individually Named Defendants**

80. Plaintiff hereby repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

81. The Defendants' acts and conduct described above did violate Plaintiffs rights to be free from unreasonable search and seizure, unlawful entry onto and into their premises, as well as to be free from unreasonable and unreasonably destructive searches and seizures, said rights being secured by the Fourth and Fourteenth Amendments to the United States Constitution.

82. The Defendants, individually deprived plaintiff ALEXANDRE TCHISTIAKOV, of the rights, privileges and immunities secured by the Constitution and laws of the United States and the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

83. As a result of the afore-described actions, these defendants individually deprived the plaintiff ALEXANDRE TCHISTIAKOV, of the right to be free from unreasonable search and seizures and the right to not be subjected to excessive and unreasonable force in violation of the 4th Amendment to the United States Constitution.

84. As a result of the afore-described actions, these defendants, individually, deprived plaintiff ALEXANDRE TCHISTIAKOV, of his right to liberty without due process of law secured by the Constitution and laws of the United States and the Fifth and Fourteenth Amendments.

85. Defendants' actions were undertaken under color of law and would not have existed but for said defendants using their official power.

86. The supervisory officers including defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) failed to take steps to terminate the above detailed practices and failed to discipline or otherwise properly supervise the individuals engaged in such practices.

87. The supervisory officers including defendant JAMES L. TOMASULO NYPD Sergeant (Tax number 945329) failed to properly or effectively train officers under his command with

regard to proper constitutional and statutory limits on the exercise of their authority, and such failure continues to this day.

88. The individually named defendants actions were objectively unreasonable.

89. The individually named defendants motivations were in contravention of the U.S. Constitution and the Constitution of the State of New York.

90. The afore-described constitutional violations are all actionable under and pursuant to 42 U.S.C., section 1983.

91. The afore-described acts of the defendants were intentional, willful, malicious and performed with reckless disregard for and deliberate indifference to plaintiffs rights.

92. As a result of the foregoing, plaintiff has suffered damages.

93. As a result of the foregoing, Plaintiff demands judgment against Defendant in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

SECOND CAUSE OF ACTION
42 U.S.C. SECTION 1983 EXCESSIVE FORCE
Against the Individually named Defendants

94. Plaintiff hereby repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

95. As a result of the afore-described actions, these defendants individually deprived plaintiff of his right to be free from the unreasonable and excessive use of force and to be free from such conduct that is repugnant and shocking to the conscience; the actions of the individual defendants which included the threat of using deadly force and causing the fear of impending death for no legitimate and reasonable purpose other than to cause him pain and to suffer.

96. The afore-described constitutional violations are all actionable under and pursuant to 42 U.S.C., section 1983.

97. The afore-described acts of the defendants were intentional, willful, and malicious and performed with reckless disregard for and deliberate indifference to plaintiffs rights.

98. As a result of the foregoing, plaintiff has suffered damages.

99. As a result of the foregoing, Plaintiff demands judgment against Defendant in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

100. The Defendants' acts and conduct described above did violate Plaintiffs rights to be free from unreasonable execution of search warrants, unlawful entry onto and into their premises, as well as to be free from unreasonable and unreasonably destructive searches and seizures, said rights being secured by the Fourth and Fourteenth Amendments to the United States Constitution.

101. The afore-described constitutional violations are all actionable under and pursuant to 42 U.S.C., section 1983.

102. The afore-described acts of the defendants were intentional, willful, and malicious and performed with reckless disregard for and deliberate indifference to plaintiffs rights.

103. As a result of the foregoing, plaintiff has suffered damages.

104. That the occurrence and damages sustained by plaintiff were caused solely by the malicious, reckless, and/or intentional conduct of the defendants, individually without any provocation on the part of plaintiff contributing thereto.

105. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

THIRD CAUSE OF ACTION

Against the Individually Named Defendants and The City of New York
Title 8 (Chapter 8) of the Administrative Code of the City of New York

106. Plaintiff hereby repeats, reiterates and re-alleges each and every allegation contained in the preceding paragraphs with the same force and effect as if set forth more fully herein.

107. Plaintiff is a “person aggrieved” by the acts of the individually named defendants as aforesaid.

108. The individually named defendants are “covered persons” under Title 8 (Chapter 8) of the Administrative Code of the City of New York.

109. The City of New York is the employer of the individually named defendants.

110. As a result of the foregoing, plaintiff has suffered damages.

111. As a result of the foregoing, Plaintiff demands judgment against the defendants individually named and against The City of New York in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction.

112. Plaintiff demands compensatory damages, punitive damages against the individually named officers and an award of attorney’s fees for the injuries as aforesaid.

PRAYER FOR RELIEF

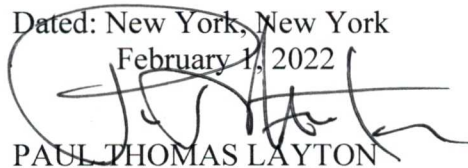
WHEREFORE, plaintiff respectfully requests that judgment be entered as follows:

On the First and Second Causes of Action, compensatory damages in a sum to be determined by the trier of fact and on the Third Cause of Action, compensatory damages and punitive damages in an amount to be determined by the trier of fact; on the First and Second Cause of Action plaintiff further demands an award of attorney fees pursuant to 42 USC Section 1988; and, on the

Third Cause of Action plaintiff further demands an award of attorney fees; on each cause of action asserted plaintiff demands the costs and disbursements of this action and for such other and further relief as this Court may deem just, proper and, equitable.

Dated: New York, New York

February 1, 2022


PAUL THOMAS LAYTON

Layton Law Firm, PLLC

40 Wall Street, 28th Floor

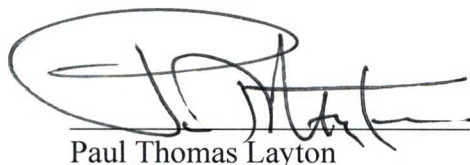
New York, New York 10005

646-402-4811

Laytonlaw10007@gmail.com

ATTORNEY VERIFICATION

PAUL THOMAS LAYTON being an attorney at law duly admitted to practice before the Courts of the State of New York affirms under the penalties of perjury and pursuant to CPLR 2106 that that he has read the foregoing First Amended Verified Complaint and upon information and belief the same is true except as to those matters herein stated to be alleged on information and belief, and that as to those matters he believes to be true based upon the files maintained by my office and that the reason that the verification is in the name of counsel is that the plaintiff does not reside in the County where I maintain my office.

A handwritten signature in black ink, appearing to read "Paul Thomas Layton", is written over a horizontal line. The signature is enclosed within a large, hand-drawn oval.

Paul Thomas Layton

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS**-----X
ALEXANDRE TCHISTIAKOV

Plaintiff/Petitioner,

- against -

Index No. 501263/2022

CITY OF NEW YORK, MICHAEL MASELLA, NYPD
Police Officer (Tax number 958888) in his
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NYPD Sergeant (Tax number 945329) in his
individual and official capacity; and, Police OfficerDefendant/Respondent.
-----X**NOTICE OF ELECTRONIC FILING
(Mandatory Case)
(Uniform Rule § 202.5-bb)****You have received this Notice because:**

- 1) The Plaintiff/Petitioner, whose name is listed above, has filed this case using the New York State Courts E-filing system ("NYSCEF"), and
- 2) You are a Defendant/Respondent (a party) in this case.

● If you are represented by an attorney:Give this Notice to your attorney. (Attorneys: see "Information for Attorneys" pg. 2).**● If you are not represented by an attorney:****You will be served with all documents in paper and you must serve and file your documents in paper, unless you choose to participate in e-filing.****If you choose to participate in e-filing, you must have access to a computer and a scanner or other device to convert documents into electronic format, a connection to the internet, and an e-mail address to receive service of documents.****The benefits of participating in e-filing include:**

- serving and filing your documents electronically
- free access to view and print your e-filed documents
- limiting your number of trips to the courthouse
- paying any court fees on-line (credit card needed)

To register for e-filing or for more information about how e-filing works:

- visit: www.nycourts.gov/efile-unrepresented or
- contact the Clerk's Office or Help Center at the court where the case was filed. Court contact information can be found at www.nycourts.gov

To find legal information to help you represent yourself visit www.nycourthelp.gov

**Information for Attorneys
(E-filing is Mandatory for Attorneys)**

An attorney representing a party who is served with this notice must either:

- 1) immediately record his or her representation within the e-filed matter on the NYSCEF site www.nycourts.gov/efile ; or
- 2) file the Notice of Opt-Out form with the clerk of the court where this action is pending and serve on all parties. Exemptions from mandatory e-filing are limited to attorneys who certify in good faith that they lack the computer hardware and/or scanner and/or internet connection or that they lack (along with all employees subject to their direction) the knowledge to operate such equipment. [Section 202.5-bb(e)]

For additional information about electronic filing and to create a NYSCEF account, visit the NYSCEF website at www.nycourts.gov/efile or contact the NYSCEF Resource Center (phone: 646-386-3033; e-mail: nyscef@nycourts.gov).

Dated: 2/1/2022 

Paul Thomas Layton 

Name

Layton Law Firm, PLLC

Firm Name

40 Wall Street, 28th Floor

NY NY 10005

Address

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Phone

E-Mail

To: CITY OF NEW YORK, MICHAEL 

MASELLA, JAMES L. TOMASU 

KHURRAM ZUBAIR 

2/24/20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
ALEXANDRE TCHISTIAKOV ,
Plaintiff,

Index No. 501263/2022

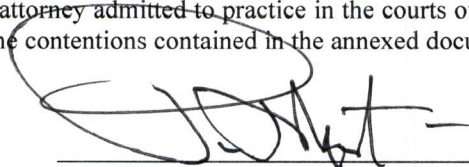
-against-

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DETECTIVES JOHN DOES 1 through 15 in their
individual and official capacities,
Defendants

-----X
FIRST AMENDED VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130.1.1, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: New York, New York
February 1, 2022



LAYTON LAW FIRM, PLLC
by Paul Thomas Layton, Esq.


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